

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPA065775: LAURA M BARON, et al. vs MARIA CRISTINA RODRIGUEZ, et al.
08/24/2026 in Department 43**

**Demurrer by Maria Cristina Rodriguez as successor in interest to the Estate of Manuel
Dejesus Rodriguez, Deceased counsel.**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Demurrer of Defendant Maria Cristina Rodriguez, as successor in interest to the Estate of Manuel Dejesus Rodriguez, to Plaintiffs' Complaint

Tentative Ruling: Demurrer of Defendant Maria Cristina Rodriguez, as successor in interest to the Estate of Manuel Dejesus Rodriguez, to the First Cause of Action of Plaintiffs' Complaint for Wrongful Death is SUSTAINED with leave to amend.

Plaintiffs need not allege that Maria Cristina Rodriguez personally committed the negligent driving that allegedly caused Doug James Baron's death. A cause of action against a person ordinarily survives that person's death, and this rule applies even where the loss or damage occurs simultaneously with or after the death of the person who otherwise would have been liable. (Code Civ. Proc. § 377.20(a), (b).)

Code Civ. Proc. § 377.40 provides that a surviving cause of action against a decedent may be asserted against the decedent's personal representative or "to the extent provided by statute," against the decedent's successor in interest. Thus, merely alleging that Rodriguez is a 'successor

in interest’ within the meaning of Code Civ. Proc. § 377.11 does not, by itself, establish that the decedent’s liability may be asserted against her; Plaintiffs must identify a statutory basis permitting the claim to proceed against her in that capacity. For example, in *Spears v. Spears* (2023) 97 Cal.App.5th 1294, the court considered Code Civ. Proc. § 377.40 together with Probate Code §§ 19400 and 19402, which expressly made trust beneficiaries personally liable, subject to statutory limitations, for claims against the deceased settlor and established the trustee and beneficiaries as successors in interest to trust property. (Id. at 1303-1304.)

The Complaint separately alleges an insurance-based claim directly against the Estate of Manuel Dejesus Rodriguez pursuant to Prob. Code §§ 550 and 9390. (Complaint ¶ 9.) Prob. Code § 550 expressly permits an insured claim to proceed against the decedent’s estate without joining the personal representative or successor in interest, and Prob. Code § 552 directs that such an action name the “Estate of [decedent], Deceased” as defendant.

Accordingly, although the death of Defendant Manuel Dejesus Rodriguez’s does not extinguish Plaintiffs’ wrongful-death claim arising from his alleged negligence, the present Complaint does not allege facts establishing the statutory basis (such as Probate Code § 13109 or § 13550) required by Code Civ. Proc. § 377.40 for asserting that liability against Maria Cristina Rodriguez as his successor in interest. Plaintiffs are granted leave to amend because there is a reasonable possibility Plaintiffs could allege facts establishing an applicable statutory basis for proceeding against Rodriguez in that capacity.

Plaintiffs are granted leave to file and serve an amended complaint on or before September 11, 2026.

Moving party is ordered to serve notice of the Court’s ruling.